

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
SPRDL1-25-Q-0034**

1. Contracting Agency: The Defense Logistics Agency Land Warren (DLA Land Warren) is the procuring activity for this action.

2. Description of Action: This action is for an urgent procurement of 138 each Valve Block Assembly, Part Number (P/N) 569471, National Stock Number (NSN):1650-01-190-8418. The only approved source capable of producing this item is Eaton Aerospace LLC., (Commercial and Government Entity (CAGE) 62983). This procurement has a total estimated value of \$ [REDACTED] and will utilize Army Working Capital Funds.

3. Description of Supplies/Services:

- a. Noun: Valve Block Assembly
- b. NSN: 1650-01-190-8418
- c. Basic Quantity: 138 each
- d. Estimated Value: \$ [REDACTED]

The Valve Block Assembly is used on the AH-64D & AH-64E Apache Attack Helicopters 30mm Area Weapon System and is a fundamental component of the AH-64's Hydraulic Motor with the function of routing hydraulic fluid within the motor.

Acquisition Method Code (AMC): 3 – Acquire, for the second or subsequent time, directly from the actual manufacturer.

Acquisition Method Suffix Code (AMSC): R – The Government does not own the data or the rights to the data needed to purchase this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture this item, AMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture this item, AMCs 1 or 2 are valid.

4. Authority Cited: The statutory authority permitting other than full and open competition for this effort is 10 United States Code (U.S.C.) 3204(a)(2), as implemented by Federal Acquisition Regulation (FAR) 6.302-2, "Unusual and Compelling Urgency."

5. Reason for Authority Cited: The U.S. Army Tank-automotive and Armaments Command has an urgent need for the items described above. Items must be procured by the quickest means possible and full and open competition will not achieve the required delivery date. The rationale for citing urgency follows:

- a. FAR 6.302-2 is deemed applicable for this requirement because TACOM has an immediate Valve Block Assembly requirement to support repair of the Hydraulic Motor, NIIN 011839529. The Hydraulic Motor is an Essential Item, [REDACTED] NIIN 011839529 [REDACTED]
- b. Eaton has the requisite manufacturing facilities, component sourcing, tooling, trained personnel, technical information and acquired expertise to produce this item. Eaton has demonstrated the ability to successfully produce and deliver Valve Block Assembly units to meet Government requirements. Failure to use the Eaton-produced Valve Block Assembly units risks unacceptable performance when firing the M230 Gun through degraded turret motion, accuracy and effectiveness. Unqualified units that have not first undergone airworthiness testing and qualification present potential operational and reliability risks.
- c. The [REDACTED] delaying Hydraulic Motor repairs. This delay would cause an additional [REDACTED] each, Hydraulic Motor NMCS [REDACTED] of the AH-64D and AH-64E Attack Helicopter fleet.

6. Efforts to Obtain Competition: Pursuant to FAR 5.202(a)(2), this proposed action will be made under the conditions described in FAR 6.302-2, and the agency will be seriously injured if the agency complies with the time periods specified in FAR 5.203. Therefore, this action will not be synopsisized in SAM.gov per the exception.

7. Market Research: As of this time, the only practicable source capable of producing this item in the required timeframe is Eaton Aerospace, LLC (CAGE 62983). No other practicable sources exist that would be capable of meeting the urgent need, as outlined in this justification.

8. Interested Sources: Pursuant to FAR 5.202(a)(2), the proposed action will be made under the conditions described in FAR 6.302-2 and is exempt from the requirements of synopsis described in FAR 5.203. Therefore, this action will not be synopsisized in

SAM.gov.

9. Other Facts: Urgent procurement is for a one-time buy only.

10. Technical Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Procurement Branch Chief
Signature: [REDACTED] 3/17/2025

Signed by: USA

11. Requirement Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Procurement Branch Chief
Signature: [REDACTED] 3/17/2025

Signed by: USA

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination will be based on the results of a detailed cost and/or price analysis. The contractor will not be required to submit certified cost or pricing data as this is under the threshold.

Name: Nichols, Timothy A.
Title: Contracting Officer, ZGBC
Signature: [REDACTED] 3/18/2025
 Timothy A. Nichols
Signed by: NICHOLS.TIMOTHY.A. [REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Nichols, Timothy A.
Title: Contracting Officer, ZGBC
Signature:

3/18/2025

 Timothy A. Nichols

Signed by: NICHOLS.TIMOTHY.A. 